

SENATE No. 2238

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting consumers from unreasonable utility rate increases.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/31/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>2/12/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>2/18/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/14/2025</i>

SENATE No. 2238

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 2238) of Joanne M. Comerford, Steven George Xiarhos, John C. Velis and Adam Gomez for legislation to protect consumers from unreasonable utility rate increases. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2088 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting consumers from unreasonable utility rate increases.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 164 of the General Laws is hereby amended by inserting after section 94I the
2 following section:-

3 Section 94J. (a) In any base rate proceeding conducted by the department under section
4 94 for electric companies or gas companies, the department may not approve an allowed return
5 on equity higher than the average allowed return on equity approved in neighboring states over
6 the preceding 4 years. Such requirement may be waived only upon a specific showing that the
7 constitutional rights of the electric or gas company would otherwise be violated.

8 (b) The determination of allowed return on equity under this section shall not include
9 compensation related to programs under section 21 of chapter 25 or any performance incentives
10 designed to promote the efficient, clean, and reliable operation of the electric or gas system.

11 (c) For the purposes of this section, “neighboring states” shall mean Connecticut, Rhode
12 Island, Maine, Vermont, and New Hampshire.